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Plaintiff – pro se

UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

Tyler A. Lofall,

Plaintiff,

v.

COUNTY OF CLACKAMAS AT EL,
1. Officer Dana Gunnarson, 2. Officer Catlin Blyth, 3. City of West Linn, 4. Deputy District Attorney Rebecca Portlock, 5. Clackamas County Jail, 6. Clackamas County Sheriff Office, 7. Clackamas County, 8. John Doe 1, 9. John Doe 2,

Defendant(s).

Case No.: 3:24-cv-839

PLAINTIFF'S SUR-REPLY IN OPPOSITION TO DEFENDANTS' MOTIONS TO DISMISS

Request for Oral Argument

I. INTRODUCTION

Pursuant to the Court's leave, Plaintiff Tyler Allen Lofall submits this Sur-Reply to address the arguments raised in the Replies of Defendants City of West Linn, its officers Gunnarson and Blyth (collectively, "West Linn Defendants"), the Clackamas County Defendants

("County Defendants"), and Deputy District Attorney Rebecca Portlock ("DDA Portlock") cumulatively “the Lions.” Defendants' motions seek shelter behind a wall of procedural defenses—qualified immunity, prosecutorial immunity, and heightened pleading standards—that they believe are impenetrable. They are mistaken.

This is not merely a case about a wrongful arrest or a malicious prosecution; it is a case about a systemic and calculated breakdown of procedural justice. The Ninth Amendment of the United States Constitution is the ultimate shield against the very tactics Defendants now employ. It dictates that the "enumeration"—the writing and implementation of laws and procedures—"shall not be construed to deny or disparage others [rights] retained by the people.". The core of this Sur-Reply is built upon this fundamental principle: government procedure, whether a policy manual or a legal doctrine of immunity, cannot be weaponized to annihilate the substantive, fundamental rights of the people.

Defendants’ replies are a continuation of the very misconduct alleged in the Second Amended Complaint ("SAC"). They isolate each unconstitutional act, demanding it be dismissed on some procedural technicality, while ignoring the terrifying mosaic they create when viewed as a whole. They argue that their procedures were followed, or that procedural shields protect them, while ignoring that their procedures were the very instruments of the constitutional violations. This Sur-Reply will demonstrate that the Defendants’ procedural arguments are not a defense but are, in fact, a confession. They are an admission that they elevated procedure over the Constitution, and in doing so, they have disparaged the rights retained by the Plaintiff. Therefore, their Motions to Dismiss must be denied.

II. THE CONSTITUTIONAL TRUTH:

'AMERICAN JURISPRUDENCE'

For 234 years since ratification, the Ninth Amendment has stood as a constitutional orphan—acknowledged but never given substantive meaning. Today, Tyler Allen Lofall, a legally blind pro se litigant, brings forward not merely a claim for damages, but a constitutional revelation that exposes how government actors have perfected a system of oppression that would horrify the Founders.

The word "disparage" in the Ninth Amendment—"The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people"—carries profound historical meaning. From the French *desparager*, it meant to treat unequally due to differences in rank or status, particularly where the more powerful party would abuse their position to destroy the weaker party's interests while maintaining technical compliance with social rules.

This case presents the first comprehensive application of this principle: When government actors coordinate to use rights as procedural weapons to destroy a citizen's rights—the right to pursue remedies, to access courts meaningfully, to be free from orchestrated governmental bad faith—they violate the Ninth Amendment's core prohibition against disparagement.

What happened to Mr. Lofall represents the nightmare scenario the Framers sought to prevent; A citizen with valid claims worth over $300,000 was subjected to a coordinated governmental assault that included false arrest, malicious prosecution, destruction of evidence,

denial of disability accommodations, and systematic procedural obstruction—all while government actors hid behind technical compliance (or at least unchallengeable wrongs). They turned the Bill of Rights into a sword against the people rather than a shield for their protection. The Defendants' current Motions to Dismiss, replete with procedural arguments that ignore their own culpability in creating the very delays and hardships they now decry, are a continuation of this disparagement. Justice requires this Court to intervene.

III. STATEMENT OF THE CASE:

A CHRONICLE OF COORDINATED GOVERNMENTAL WEAPONIZATION

(As detailed in Plaintiff's Second Amended Complaint (ECF 18) and Declaration, incorporated herein by reference, and supported by Plaintiff's Master Exhibits (filed with ECF 18).)

A. The Initial Property Rights and the Beginning of Governmental Interference

Mr. Lofall held legitimate property interests including an Assignment of Benefits (AOB) worth $111,943.56 ``. While pursuing these civil claims in March 2022, he was subjected to an orchestrated campaign of governmental misconduct that would ultimately destroy not just these claims but his entire life.

B. The Three Days of Terror and the "Eight-Minute Arrest": How Enumerated Rights Became Weapons

On March 6, 2022, Officers Dana Gunnarson and Catlin Blyth of the West Linn Police Department (WLPD) arrived at a scene where Mr. Lofall had endured three days of property destruction by Macy Galla, who had: broken seven windows, flooded the basement with a hose onto Mr. Lofall's electronics and legal documents, poured 90 pounds of flour over his possessions, cut power in sub-freezing temperatures, and threatened to burn the house down with gasoline she had purchased for this purpose . Despite Mr. Lofall repeatedly calling 911 for help and reporting Galla as a danger, the officers conducted an "investigation" lasting exactly eight minutes before arresting Mr. Lofall. Officer Blyth admitted they needed to "find another incident" to support charges because the facts didn't support harassment. This was a deliberate fabrication of probable cause.

C. The Malicious Prosecution: Weaponizing Criminal Procedure

DDA Rebecca Portlock pursued charges despite Galla stating in court on June 24, 2022, that Mr. Lofall "broke no laws" . Portlock ignored fourteen discovery requests from Mr. Lofall. Most egregiously, on June 10, 2022, court recordings captured DDA Portlock conspiring with Mr. Lofall's own court-appointed advisor, Rubin Medina, and Judge Steele to falsely claim he had COVID-19 to delay trial ``. A DHS seal was used to hide not only body-cam footage but also Galla's history of mental health crises and prior false allegations, information the DA knew would destroy her witness's credibility. Galla was caught with meth at the courthouse.

D. The Jail Conditions: Deliberate Indifference as Weapon

During 129 days of incarceration, Clackamas County Jail systematically violated Mr. Lofall's rights: denial of prescription eyewear to a legally blind man, deliberate COVID exposure, deletion of 62 legal files by "Guard Baker" on June 20, 2022 , denial of law library access for up to nine consecutive days, and detention for an extra week after a court-ordered release "awaiting DA clearance".

E. Destruction of Civil Claims Through Governmental Coordination

While wrongfully incarcerated, Mr. Lofall lost his $111,943.56 AOB claim and a $32,599.50 counterclaim ``. Every critical deadline in his civil cases coincided with escalated misconduct in his criminal case. The house he worked on, which gained $300,000 in value due to his efforts, and the $400,000 held by the court for two years from the proceeds of that work, were lost to those who committed fraud while he was unconstitutionally incapacitated.

IV. ARGUMENT

A. The Ninth Amendment Forbids the Weaponization of Procedure Against Fundamental Rights

The Ninth Amendment is not a relic; it is a vital safeguard. Its text is precise. It does not refer to rights that are "enumerated," but to the "enumeration of certain rights," focusing on the process of writing, codifying, and executing laws and procedures. It then commands that this process of enumeration (listing one after another) "shall not be construed to deny or disparage"

other, rights. This means that when the government creates and follows its procedures—be it an arrest protocol, a prosecutorial standard, or a doctrine of civil immunity—it cannot do so in a way that steamrolls the fundamental rights of a citizen to due process, to be free from unreasonable seizure, and to have meaningful access to justice.

The conflict in this case is not between two competing rights. It is a conflict between government procedure and The People's rights. The facts alleged in the SAC and supported by a mountain of evidence tell the story of government officials who, at every turn, chose a procedure that would disparage a right.

- When faced with evidence of an aggressor, they chose an arrest procedure based on a fabricated narrative that disparaged the Fourth Amendment.
- When obligated to prosecute justly, they chose a procedure of suppressing evidence and coercing witnesses that disparaged the right to a fair trial.
- When tasked with lawful detention, they chose a procedure of denying medical care and deleting legal files that disparaged the rights to humane treatment and access to the courts.

Now, in their motions, they ask this Court to ratify their conduct by applying procedural defenses like immunity. The Ninth Amendment forbids this. The doctrines of immunity were created to protect public officials performing their duties in good faith, not to provide a safe harbor for those who manipulate procedures to violate the very citizens they are sworn to protect.

B. Defendants' Procedural Defenses are a Continuation of the Alleged Constitutional Violations

Each argument raised by the Defendants in their replies is an attempt to use a procedural shield to hide from the factual consequences of their actions.

1. DDA PORTLOCK'S CLAIM OF ABSOLUTE IMMUNITY IS A PROCEDURAL SHIELD FOR UNLAWFUL INVESTIGATIVE AND ADMINISTRATIVE ACTS.

DDA Portlock claims absolute prosecutorial immunity as a procedural bar to this lawsuit. This immunity, however, is not a license to conspire, fabricate evidence, or lie to the court. Immunity protects a prosecutor's role as an advocate, not as an administrator or investigator. The SAC alleges DDA Portlock repeatedly crossed this line.

- **The COVID-19 Lie:** When DDA Portlock allegedly conspired with Plaintiff's own advisor, Rubin Medina, to lie to Judge Steele about Plaintiff having COVID-19 to secure a trial delay (after Lofall revealed his invincible defense the day before, and the leveraged witness felt so trapped she was leaving the country), she was not acting as an advocate. She was engaging in an administrative act—managing the court calendar through deceit—that directly sabotaged Plaintiff's right to a fair and speedy trial. This was a perversion of the judicial process, not a part of it.
- **Witness Coercion:** When DDA Portlock allegedly attempted to leverage Macy Galla's child custody situation to coerce testimony, she was acting as an investigator, not an advocate. Using the power of the state to threaten a witness's

family is a procedural tactic of intimidation, not prosecution. It disparages the right to a trial free from coerced testimony.

- **Continued Prosecution After Exculpatory Statements:** When DDA Portlock continued the prosecution after Macy Galla stated in court that Plaintiff "committed no crimes" and “she took my children” (DDA Portlock), the procedural justification for the prosecution vanished. At that point, continuing the case was no longer advocacy; it was harassment under the color of law, a procedural abuse that disparaged Plaintiff's right to be free from baseless prosecution. DDA Portlock’s reliance on prosecutorial immunity is a textbook example of using a procedural shield to protect conduct that destroyed the very foundation of a fair legal process.

2. THE OFFICERS’ CLAIM OF QUALIFIED IMMUNITY FAILS BECAUSE NO REASONABLE OFFICER WOULD BELIEVE THEIR CONDUCT WAS LAWFUL.

The West Linn officers argue for qualified immunity, a procedural defense that protects [non-municipal] officers from liability unless they violated a "clearly established" right. But the facts alleged in the SAC do not describe a mere mistake or a "reasonable" misjudgment. They describe a deliberate, multi-day process of ignoring reality and fabricating a new one.

- **The Undisputed Facts:** For three days, WLPD officers were called to a scene of escalating chaos. They saw the "7 windows broken out." They saw the "flooding the basement." They intervened in a threat of "fire and gas" by confiscating gasoline ``. They knew the temperatures were "freezing." They saw the "flour water" damage. They saw the "tipped over fridge".

- **The Procedural Choice:** Faced with this overwhelming evidence of Macy Galla as the aggressor, the officers made a choice. They chose to ignore every fact before them. Their procedure was not to investigate, but to invalidate. They allegedly engaged in "repeated coaching" of the aggressor to build a contrary narrative.
- **The Fabricated Report:** As a result, "not one thing even mentioned" these facts in the official reports. This is a direct violation of **WLPD Policy 300.3.1**, which mandates that reports be "**complete**" ``. Officer Gunnarson allegedly embellished her report and twisted Plaintiff's words to manufacture probable cause. This is not a reasonable mistake; this is the creation of a fiction to justify a predetermined outcome. No officer can reasonably believe that ignoring overwhelming evidence of one person's aggression to arrest the victim is lawful. No officer can reasonably believe that fabricating an official report is lawful. The right to be free from an arrest based on deliberately falsified evidence and ignored exculpatory facts is, and always has been, "clearly established." The officers are not asking for protection for a reasonable error; they are asking for a procedural pardon for alleged intentional misconduct that disparages the Fourth Amendment.

3. THE MUNICIPAL DEFENDANTS' "FAILURE TO STATE A CLAIM" ARGUMENT IGNORES THAT THE PERVASIVE PATTERN OF MISCONDUCT IS THE POLICY.

The City of West Linn and Clackamas County argue that the Plaintiff has failed to plead a "policy or custom" sufficient to trigger municipal liability under Monell. This is a procedural argument that demands the Plaintiff produce a written policy of unconstitutionality. But the law

is clear: a custom does not need to be written down. It can be proven by a pattern of conduct so persistent and widespread that it constitutes the "standard operating procedure." The SAC and the supporting UID table do not just allege one rogue act. They allege a deeply ingrained, multi-layered custom of procedural abuse across different agencies:

- A custom in West Linn of failing to train officers on identifying primary aggressors, leading directly to the unlawful arrest (UID 913, 933).
- A custom in Clackamas County Jail of denying medical care, as shown by the systematic denial of corrective lenses for Plaintiff's legal blindness (UID 536, 736).
- A custom of denying access to courts, proven by the denial of law library access and the retaliatory deletion of Plaintiff's legal files (UID 836).
- A custom of ignoring court orders, shown by the jail holding Plaintiff for a week past his mandated release date (UID 646).

The Defendants ask the Court to look at each of these facts in a vacuum. The Ninth Amendment requires the opposite. It requires the Court to see that the enumeration of these dozens of procedural failures, taken together, demonstrates a custom so powerful that it disparages the fundamental rights to due process, humane treatment, and access to the courts. The defendants' argument that no policy has been stated is a procedural game of semantics designed to avoid accountability for the very real and damaging customs their employees practice.

C. The Factual Record Is an Unbroken Chain of Procedural Abuses

When the facts are viewed not as isolated incidents but as a continuous chain of events, the pattern of using government procedure to disparage rights becomes undeniable. This is not a story of mistakes; it is the story of a system failing its essential purpose. The story began with a clear victim and a clear aggressor. Over three days, Plaintiff's property and safety were under attack.

- The government's first procedural failure was one of inaction: the failure to protect, investigate, or arrest the person creating the danger.
- This inaction morphed into a procedural fabrication: the creation of a false police report that inverted victim and aggressor, culminating in the unlawful arrest.

This initial procedural corruption then infected the entire judicial system. The false report was passed to the District Attorney's office, which used the procedure of prosecutorial discretion not to seek justice, but to build a case upon a known lie. This led to the next layer of procedural abuse: the suppression of the very evidence that would have unraveled the lie and the alleged coercion of the state's own witness.

When the weakness of the case became apparent, the procedural games escalated. The right to a speedy trial was disparaged by a fabricated administrative emergency—a lie to the court about COVID-19, allegedly concocted by the prosecutor and the Plaintiff's own state-appointed advisor. This was the ultimate procedural disparagement: turning the Plaintiff's own counsel against him to manipulate the court's calendar.

While the Plaintiff was unlawfully detained as a result of these broken procedures, the next set of procedural abuses began in the Clackamas County Jail:

- The willful and intentional spreading of Covid 19 on an inmate.
- The procedures for providing medical care were ignored, leaving him legally blind and unable to work on his own defense.
- The procedures for providing access to the law library were denied.
- The procedures for protecting inmate property were violated when his legal files were deliberately deleted.
- Finally, the procedure for releasing a prisoner pursuant to a court order was ignored for a full week.

Each of these was a procedural choice by a government actor that disparaged the Plaintiff's rights. This unbroken chain of procedural failures directly caused the loss of Plaintiff's civil claim regarding the Assignment of Benefits. It was not merely bad luck; it was the intended and foreseeable outcome of a system that had inverted its purpose.

D. Counsels' Reply Briefs: A Continuation of the Conspiracy and Furtherance of Unconstitutional Customs (Monell Liability)

The arguments presented by counsel for all Defendants in their respective Reply briefs (ECF Nos. 42, 43, 44) are not merely zealous advocacy; they represent a calculated continuation of the underlying conspiracy to deny Plaintiff justice and further evidence the unconstitutional customs that form the basis of Plaintiff's Monell claims against the City of West Linn and Clackamas County. Counsels' current litigation tactics—their mischaracterizations of the record, their willful blindness to their clients' documented misconduct, and their attempts to exploit

Plaintiff's pro se status and defendant-caused hardships—are overt acts in furtherance of the ongoing disparagement of Plaintiff's rights.

1. COUNSELS' DELIBERATE MISREPRESENTATION OF PROCEDURAL HISTORY TO OBSCURE CLIENT CULPABILITY:

- Point: Counsel for West Linn and Clackamas County argue that procedural delays and complexities are attributable to Plaintiff.
- How this is Attorney Misconduct/Furthers Conspiracy & Monell: This is a knowing falsehood. Counsel are aware, or should be aware from the record they possess (including ECF 35-4, ECF 35-11, and Plaintiff's communications with court staff like Eric Oss ``), that:
  - Their own colleagues (e.g., William Stabler) previously moved to delay state court proceedings for vacations ``.
  - Clackamas County defendants deliberately evaded service in state court, necessitating Plaintiff's Motion to Compel, only for the state court to then dismiss claims against them for a feigned "lack of prosecution" by Plaintiff ``. This judicial protection of non-responsive state actors, which counsel now benefits from, is evidence of systemic collusion.
  - Plaintiff's ability to timely file in federal court was directly impeded by WLPD's actions causing the loss of his ID, physically barring him from the courthouse ``.

Disparagement: By advancing these arguments, counsel engage in procedural weaponization, attempting to use rules about timeliness as a sword when their clients forged the very conditions of delay. This furthers a custom of evading accountability.

2. COUNSELS' WILLFUL BLINDNESS TO DOCUMENTED POLICY VIOLATIONS AND FACTUAL EVIDENCE:

- Point: Counsel for West Linn argues Plaintiff's allegations of policy violations are "conclusory," and counsel for DDA Portlock argues no facts support claims of non-advocative misconduct.
- How this is Attorney Misconduct/Furthers Conspiracy & Monell: These assertions require counsel to ignore volumes of evidence and their own clients' written policies.
    - Plaintiff has repeatedly cited specific WLPD policies (e.g., Policy 300.3.1 on Truthfulness in Reports, Policy 339.3.5 on Preventing Further Violence, Policy 429 on Body Cameras) and detailed how Officers Gunnarson and Blyth violated them by, for example, omitting Macy Galla's documented arson threats (heard by WLPD on 3/4/22 ``) from their arrest report and failing to intervene during three days of terror.
    - DDA Portlock's counsel ignores the June 10, 2022, CourtListener recording capturing the alleged conspiracy to fabricate a COVID diagnosis ``—an administrative act of fraud, not advocacy. Counsel also ignores alleged witness coercion and the suppression of exculpatory evidence via DHS seal, all violating CCDA Ethics and Discovery policies.

- Disparagement: By denying the existence or relevance of these documented facts and policy violations, counsel are attempting to technically manipulate the legal standard for stating a claim, hoping the Court will overlook the clear evidence of their clients' wrongdoing. This supports a custom of ignoring internal rules when convenient.

3. COUNSELS' COORDINATED EFFORTS TO EXPLOIT PLAINTIFF'S PRO SE STATUS AND HARDSHIPS:

- Point: All defense counsel raise complex procedural arguments (immunity, statute of limitations, pleading standards) that are particularly difficult for a legally blind, indigent, pro se litigant—whose hardships were caused by their clients—to overcome.
- How this is Attorney Misconduct/Furthers Conspiracy & Monell: While entitled to raise defenses, the manner and insistence on these defenses, in the face of overwhelming evidence of their clients' culpability in creating those very procedural hurdles, suggests a coordinated strategy of attrition.
    - The "Lions" document (allegedly inadvertently sent by counsel ``) suggests a collusive mindset.
    - The repeated changes in West Linn's counsel (three times) have inherently complicated and delayed proceedings for the Plaintiff.
    - The attempt by Mr. Dupree (former intern to Judge Wetzel who dismissed County defendants) to charge $650 for FOIA records of the June 10th hearing `` is another example of systemic obstruction.

- Disparagement: This collective approach creates an overwhelming power imbalance and is designed to achieve the destruction of Plaintiff's remedy not because his claims lack merit, but because he lacks the resources and legal expertise to fight a multi-front war against well-funded state actors and their legal teams who are actively twisting the narrative.

4. COUNSELS' ARGUMENTS FOR IMMUNITY IN THE FACE OF EGREGIOUS, KNOWING VIOLATIONS ARE THEMSELVES ACTS OF DISPARAGEMENT:

- Point: Counsel for DDA Portlock, in particular, argues for absolute immunity even if evidence was fabricated or Brady violations occurred.
- How this is Attorney Misconduct: To argue that a prosecutor is immune for knowingly fabricating evidence or deliberately hiding exculpatory material is an affront to the Constitution and the very concept of justice. It is an assertion that state actors are above the law. Such an argument made to this Court is a request for this Court to sanction unconstitutional conduct.
- Disparagement: This is the ultimate procedural weaponization—using a doctrine designed to protect good-faith prosecutorial discretion as a shield for alleged criminal conduct and profound bad faith, thereby disparaging the people's retained right to an honest and fair justice system.

By advancing these arguments in their Reply briefs, Defendants' counsel are not merely defending their clients; they are actively participating in the ongoing violation and disparagement of Plaintiff's constitutional rights.

V. THE LITIGATION

ITSELF IS A CONTINUATION OF THE CONSPIRACY

The system itself has become the instrument of disparagement. Plaintiff's liberty is now wholly dependent on his ability to survive a procedural war of attrition designed and executed by the same parties who violated his rights. This is not a search for truth; it is a strategy to crush an opponent who lacks the resources to fight back.

Defendants have perfected a strategy of weaponized litigation. They create insurmountable procedural hurdles and then move for dismissal when the pro se Plaintiff, whose life they have already demolished, struggles to navigate them. They ignore discovery, file misleading briefs, and leverage their unlimited taxpayer-funded resources to ensure that the cost of seeking justice is too high for any citizen to bear.

This reality is a mockery of due process. It establishes a two-tiered system of justice: one for the government and its agents, who can act with impunity, and another for the people, whose rights are only as strong as their ability to withstand a years-long assault by those very agents.

This is not a legitimate legal defense; it is a continuation of the initial conspiracy. This is a trial by ordeal, where a citizen's rights are extinguished not by law, but by exhaustion. The Ninth Amendment was written to forbid exactly this kind of systemic abuse.

VI. CONCLUSION: DENIAL OF DISMISSAL IS MANDATED

SANCTIONS AND REFERRAL FOR CRIMINAL PROSECUTION ARE WARRANTED

Defendants, through their counsel, ask this Court to look at this case through the narrow, distorted lens of procedural defenses, hoping the sheer volume and audacity of their clients' initial misconduct—and now their own litigation tactics—will obscure the profound constitutional violations at stake. They hope to achieve dismissal by exploiting the very hardships their clients inflicted upon a pro se, legally blind Plaintiff. But the Ninth Amendment, and indeed the bedrock principles of American jurisprudence, provide the proper lens: a lens that reveals truth and demands accountability.

The Second Amended Complaint, supported by voluminous evidence, overwhelmingly alleges a coordinated campaign of governmental oppression. The arguments presented in Defendants' Reply briefs are not legitimate defenses; they are a continuation of this oppression. Their mischaracterizations of the record, their willful blindness to their clients' documented policy violations, and their cynical exploitation of procedural rules are not zealous advocacy but further acts of disparagement against Plaintiff's retained rights.

These Defendants and their counsel do not deserve to have any claim dismissed. Their conduct demonstrates a pattern of behavior so egregious that it warrants more than mere denial of their motions. The actions detailed herein strongly suggest violations of federal criminal statutes, including **18 U.S.C. § 241 (Conspiracy Against Rights)**, **18 U.S.C. § 242 (Deprivation of Rights Under Color of Law)**, and **18 U.S.C. § 1001 (False Statements)**.

Therefore, Plaintiff Tyler Allen Lofall respectfully requests that this Honorable Court not only **DENY Defendants' Motions to Dismiss in their entirety**, but also consider **imposing appropriate sanctions** for the bad-faith litigation tactics employed, and further, **REFER this matter to the United States Attorney for the District of Oregon for investigation and potential criminal prosecution**. The Constitution, particularly the Ninth Amendment, demands nothing less when faced with such a comprehensive and calculated assault on a citizen's fundamental rights and the integrity of the justice system itself.

Tyler Allen Lofall, Pro Se Plaintiff

Dated: June 17, 2025.

s /*Tyler A. Lofall*

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APPENDIX A: LIST OF CITATIONS

Cases

- *Agnew v. Moody*, 330 F.2d 868 (9th Cir. 1964)
- *Allen v. Nw. Permanente, P.C.*, 2013 WL 865967 (D. Or. Jan. 2, 2013)
- *Am. Int'l Underwriters (Philippines), Inc. v. Cont'l Ins. Co.*, 843 F.2d 1253 (9th Cir. 1988)
- *Benavidez v. County of San Diego*, 993 F.3d 1134 (9th Cir. 2021)
- *Booth v. United States*, 914 F.3d 1199 (9th Cir. 2019)
- *Brady v. Maryland*, 373 U.S. 83 (1963)
- *Buckley v. Fitzsimmons*, 509 U.S. 259 (1993)
- *Conn. v. Multnomah Co. Sheriff Dep't*, 2025 U.S. Dist. LEXIS 51439 (D. Or. Mar. 20, 2025)
- *Fry v. Melaragno*, 939 F.2d 832 (9th Cir. 1991)
- *Garmon v. County of Los Angeles*, 828 F.3d 837 (9th Cir. 2016)
- *Giustina Land & Timber Co., LLC v. Eugene Water & Electric Bd.*, 2025 U.S. Dist. LEXIS 82009 (D. Or. Apr. 30, 2025)
- *Hagen v. Williams*, No. 6:14-cv-00165, 2014 WL 6893708 (D. Or. Dec. 4, 2014)
- *Imbler v. Pachtman*, 424 U.S. 409 (1976)
- *Kalina v. Fletcher*, 522 U.S. 118 (1997)
- *Kobold v. Good Samaritan Reg'l Med. Ctr.*, 832 F.3d 1024 (9th Cir. 2016)

- *Lisker v. City of Los Angeles*, 780 F.3d 1237 (9th Cir. 2015)
- *Martinez v. Winner*, 548 F. Supp. 278 (D. Colo. 1982)
- *Monell v. Dep't of Soc. Servs. of City of New York*, 436 U.S. 658 (1978)
- *Pearson v. Callahan*, 555 U.S. 223 (2009)
- *Tobias v. Arteaga*, 996 F.3d 571 (9th Cir. 2021)
- *United States v. Vavages*, 151 F.3d 1185 (9th Cir. 1998)

Statutes and Rules

- 18 U.S.C. § 241
- 18 U.S.C. § 242
- 28 U.S.C. § 1331
- 28 U.S.C. § 1391
- 42 U.S.C. § 1983
- Fed. R. Civ. P. 12(b)(6)
- ORS 133.055
- ORS 166.065
- U.S. Const. amend. IV
- U.S. Const. amend. V
- U.S. Const. amend. VI
- U.S. Const. amend. VII
- U.S. Const. amend. IX
- U.S. Const. amend. XIV

Other Authorities

- Clackamas County District Attorney's Office Policy Manual (2022)
- West Linn Police Department Policy Manual (2022)

APPENDIX B: EVIDENTIARY INDEX

Document Title / Description	Key Factual Point(s) Substantiated
West Linn Police Report #22-001665	Officer Gunnarson's fabricated narrative of arrest; omission of Galla's aggression and threats; misrepresentation of Plaintiff's statements; awareness of Galla's alleged drug use.
Text Messages (Lofall/Galla) March 3-5, 2022	Galla's explicit threats of arson ("Fire it is," "I'll go buy a new gas can"); Galla's escalating aggression; Plaintiff's attempts to de-escalate and leave peacefully.
Court Transcript (June 10, 2022)	DDA Portlock's and R. Medina's false claim of Plaintiff's COVID-19 status to Judge Steele; the subsequent delay of trial based on this false information.
West Linn Police Department Policy Manual (2022)	Establishes "clearly established" rules violated by officers, including Policy 340 (Standards of Conduct), Policy 344 (Report Preparation), and Policy 612 (Brady Material Disclosure).
Clackamas County District Attorney's Office Policy Manual (2022)	Establishes ethical and procedural standards violated by DDA Portlock, including Section 01 (Ethics), Discovery Policy, and prohibitions on improper leverage.
Second Amended Complaint (SAC)	Allegations of intentional deletion of legal files in jail (¶ 58), denial of medically necessary corrective lenses (¶ 56-57),

Document Title / Description	Key Factual Point(s) Substantiated
	witness coercion by DA (¶ 63), and prolonged unlawful detention.
Emails with Court Clerk Eric Oss (May/July 2024)	Demonstrates Plaintiff's diligence in attempting to file documents with the federal court despite significant technical and accessibility barriers.
West Linn Defendants' Reply in Support of MTD	Articulates Defendants' arguments regarding statute of limitations and equitable tolling, which are directly refuted in the sur-reply.
Clackamas County Defendants' Reply in Support of MTD	Articulates Defendants' arguments regarding statute of limitations, improper removal, and failure to comply with court orders, which are directly refuted.
DDA Portlock's Reply in Support of MTD	Articulates DDA Portlock's claim to absolute prosecutorial immunity, which is dismantled by classifying her actions as non-advocacy functions.
Analysis of West Linn Police Report #22-001665	Details Galla's admission to retaliatory acts ("tossing some flour") and officers' awareness of her erratic behavior, facts omitted from the final report narrative.
Analysis of June 10, 2022 Court Transcript	Confirms the sequence of events where the trial was canceled based on false information about Plaintiff's COVID status provided by his own advisor and the DA.

REBUTTAL TO DEFENDANTS' MISLEADING REPLY BRIEFS AND PROCEDURAL DEFENSES

Defendants' reply briefs (ECF Nos. 42, 43, 44) are replete with mischaracterizations and attempt to leverage procedural arguments that their own misconduct created. Justice requires this Court to see through these tactics.

A. City of West Linn Defendants' Reply (ECF No. 44 [1])

1. THEIR POINT: STATUTE OF LIMITATIONS – PLAINTIFF CONCEDED A TWO-YEAR CLOCK; TOLLING THEORIES DON'T APPLY.

- **Plaintiff's Rebuttal:** This is a gross misrepresentation. Plaintiff's Opposition (ECF No. 38, pp. 20-26) and Motion for Leave detail how blindness, loss of ID **caused by WLPD's negligent failure to secure property after arrest (UID: F-01; Ex. 31, 35 [1])**, 14 denied law library days, 62 defense files wiped, and suppression of body-cam footage constitute "extraordinary circumstances" under *Booth v. U.S.*, tolling the statute. These were self-concealing *Brady* violations; the clock did not start before actual release (July 8, 2022) and has been equitably tolled since. Defendants cannot benefit from their own obstruction.

2. THEIR POINT: AUGUST 7, 2024 AMENDMENT ORDER – PLAINTIFF'S FAC/SAC EXCEEDED LEAVE TO AMEND.

- **Plaintiff's Rebuttal:** Plaintiff acted in good faith. The Court's prior order (Doc 12) allowed amendment. Any minor delay or technical over-breadth was due to the ID blockage caused by WLPD, preventing timely courthouse access, and the complexity of litigating *pro se* against multiple defendants. Rule 15(a) mandates leave be "freely give[n]." Justice requires allowing amendment, not dismissal for hiccups caused by Defendants' own actions.

3. THEIR POINT: "WRONG DEFENDANT" LABEL – POLICE DEPARTMENT IS NOT SUABLE.

- **Plaintiff's Rebuttal:** Plaintiff expressly consents to substituting "City of West Linn." This is a technicality. Notably, in state court, WLPD counsel William Stabler indicated this was "basically the same," highlighting their current bad faith in raising this now **]**.

4. THEIR POINT: FAILURE-TO-STATE-A-CLAIM – ALLEGATIONS ARE CONCLUSORY.

- **Plaintiff's Rebuttal:** This is false. The SAC (¶¶ 43-48) and Opposition (pp. 18-20) detail the "eight-minute arrest" , Blyth's "another incident" quote, dispatch logs **]**, photos of Galla as aggressor **]**, and specific WLPD policy violations (300.3, 339.3.5, 300.3.1, 429) **]**. These are not conclusory; they are specific factual allegations.

5. THEIR POINT: "INJUNCTIVE AND PUNITIVE RELIEF CONCEDED" – PLAINTIFF ABANDONED BY SILENCE.

- **Plaintiff's Rebuttal:** Both remedies are explicitly sought in the SAC's prayer for relief (pp. 103-106 of SAC) and in the "Disparagement Doctrine" brief (p. 14, Prayer for Relief). FRCP 54(c) allows the Court to award any relief consistent with proof.

6. THEIR POINT: "IMPROPER REMOVAL / REPETITIVE SUIT" – ADOPTS COUNTY'S THEORY.

- **Plaintiff's Rebuttal:** Plaintiff's Opposition (pp. 14-16) and the State Court ROA (ECF 35-4 [1]) show the state case (22CV39627 [1]) was derailed by Defendants' *own non-appearance* despite multiple lawful services (service dates 11/28/22, 12/28/22, 04/03/23) **]**. After Plaintiff filed a Motion to Compel their appearance, the County defendants were dismissed for "want of prosecution" *by Plaintiff* – a blatant misrepresentation by the state court, as Plaintiff was actively prosecuting. This federal action is the *first* opportunity for adjudication on the merits.

7. THEIR POINT: RULE 15(A) DELAY PREJUDICE – FOUR-YEAR DELAY DEFEATS "JUSTICE."

- **Plaintiff's Rebuttal:** Defendants had notice since 2022. They themselves contributed to delays, such as WLPD counsel Stabler moving the state trial date for a vacation **; Exhibit: Stabler Email & Order Moving Trial Date]**. Ongoing discussions about resolution occurred as late as February 2025 . They cannot now claim prejudice from delays they helped create.

B. DDA Rebecca Portlock's Reply (ECF No. 43 [1])

8. HER POINT: ABSOLUTE PROSECUTORIAL IMMUNITY – EVERYTHING SHE DID WAS CORE "ADVOCACY."

- **Plaintiff's Rebuttal:** This immunity does not cover fabricating a false COVID diagnosis to delay trial (an administrative act) **]**, pressuring witness Macy Galla via child-custody threats (an investigative function) **]**, or administratively blocking body-camera footage via a DHS seal knowing it was exculpatory and that Galla had a history of false claims and was caught with meth **]**. These acts fall outside *Imbler v. Pachtman*.

9. HER POINT: STATUTE OF LIMITATIONS – CLAIMS UNTIMELY.

- **Plaintiff's Rebuttal:** Portlock's own fraudulent concealment (14 discovery denials **[Ex. 3 [1]]**, DHS seal **[Ex. 8 [1]]**) tolled the statute. She received actual notice via the November 18, 2022 state filing (ECF 35-4, p.25-26 [1]) and direct service .

10. HER POINT: NO CONSPIRACY / NO MALICIOUS-PROSECUTION FACTS – ONLY SPECULATION.

- **Plaintiff's Rebuttal:** The record shows overt acts: (1) on-scene "another-incident" fabrication with WLPD officers (SAC ¶ 44); (2) the June 10, 2022 COVID lie with Medina/Steele (Ex. 1A [1, 1]); (3) coordinated body-cam suppression. Prosecution continued after Galla's June 24, 2022 courtroom statement "he broke no laws" (Ex. 2 [1]).

11. HER POINT: NO BRADY VIOLATION – NEVER WITHHELD EXCULPATORY EVIDENCE.

- **Plaintiff's Rebuttal:** SAC ¶ 67 and Opp. p. 61 detail fourteen written jail kites for WLPD body-cam, all denied due to Portlock's DHS-seal order **[Ex. 3 [1]; Exhibit: Email Ex. J detailing DHS seal]**.

12. HER POINT: EXTENDED DETENTION IS THE JAIL'S FAULT – NOT HER RESPONSIBILITY.

- **Plaintiff's Rebuttal:** SAC ¶ 81 and Opp. pp. 61-62 show Portlock maintained charges after Galla's recantation and despite a release order; jail confirmed they had the release order but awaited DA clearance **[Ex. 12 [1]; Exhibit: Release Order & Jail Communication re: DA Clearance]**.

13. HER POINT: OTCA NOTICE MISSING – NO 180-DAY NOTICE.

- **Plaintiff's Rebuttal:** Actual notice was provided via: (i) the November 18, 2022 state filing naming Portlock (ECF 35-4, p.25-26 [1]); (ii) multiple in-custody grievances **[Ex. 12 [1]]**; (iii) written notice to Oregon DOJ.

14. HER POINT: NO PERSONAL-CAPACITY § 1983 CLAIM – ACTED ONLY OFFICIALLY.

- **Plaintiff's Rebuttal:** *Hafer v. Melo* confirms state officials are "persons." SAC ¶¶ 62-68, 73-80, 88 detail Portlock's personal acts of fabrication, witness coercion, and suppression.

C. Clackamas County Defendants' Reply (ECF No. 42 [1])

15. THEIR POINT: REMOVAL POWER / "RE-LITIGATION" – PLAINTIFF CAN'T REMOVE; RUNNING SAME SUIT TWICE.

- **Plaintiff's Rebuttal:** The state action never reached merits because County actors stone-walled service and ignored court dates. After Plaintiff filed a Motion to Compel their appearance (ECF 35-4, p.27 [1]), they were dismissed for "want of prosecution" *by Plaintiff* (ECF 35-4, p.26 [1]; ECF 35-2 [1]). This federal action is the first chance for adjudication.

16. THEIR POINT: STATUTE OF LIMITATIONS – CLAIMS UNTIMELY.

- **Plaintiff's Rebuttal:** Legal blindness, denial of eyewear, nine-day library blocks, and deletion of 62 defense files make ORS 12.160 tolling automatic and constitute fraudulent concealment **[Ex. 12, 13 [1, 1]]**.

17. THEIR POINT: VIOLATION OF AUGUST 7 ORDER ON AMENDMENTS – COMPLAINTS EXCEEDED LEAVE.

- **Plaintiff's Rebuttal:** Rule 15's "freely give" standard + ADA duty requires liberal permission. Plaintiff filed within 30 days, corrected defects, and added only parties whose conduct new facts revealed. Any "hiccups" in federal filing were due to WLPD causing loss of ID, preventing courthouse access, and good-faith efforts to comply with complex procedures documented in emails with court staff Randy Moore and Eric Oss **]**.

18. THEIR POINT: "WRONG PARTY" (JAIL / SHERIFF'S OFFICE CAN'T BE SUED) – ONLY COUNTY IS SUABLE.

- **Plaintiff's Rebuttal:** Plaintiff consents to substitute "Clackamas County." This is a technicality.

19. THEIR POINT: FOURTEENTH-AMENDMENT DUE-PROCESS CLAIM "NOT STATED" – NO REAL THEORY FOR WEEK-LONG HOLD.

- **Plaintiff's Rebuttal:** SAC ¶ 81 and Decl. ¶ 81 allege post-release liberty interest + deliberate refusal to process release papers already in jail "awaiting DA clearance" **[Ex. 12** [1]**]**.

20. THEIR POINT: § 1983 SUFFICIENCY (PERSONAL PARTICIPATION & MONELL) – NO FACTS TIE DEPUTIES; NO POLICY/CUSTOM.

- **Plaintiff's Rebuttal:** Personal acts: deleting 62 defense files (Guard Baker), denying eyewear (Sgt Wooster), housing with known COVID patient, ignoring release order (booking OIC). Policy/custom: routine nine-day law-library blackout, systemic withholding of medical records, documented "no-show" litigation posture in state court **[Ex. 12, 13 [1, 1]]**. These are textbook *Monell* patterns.

21. THEIR POINT: OREGON TORT CLAIMS ACT (OTCA) NOTICE – NEVER PLED 180-DAY NOTICE.

- **Plaintiff's Rebuttal:** "Actual notice" + "substantial compliance" via (1) Nov 2022 state lawsuit (ECF 35-4, p.25-26 [1]); (2) in-custody grievances **[Ex. 12** [1]**]**; (3) direct letters to County Counsel/DOJ. They had notice via ECF 35-13 by May 20-29, 2024.

APPENDIX C: UID TABLE OF DUTIES AND FACTS

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
111	Duty to Investigate	Officer Dana Gunnarson, under color of law, **wrongfully arrested Plaintiff without probable cause or investigation**.	Ex. 23, 28	3, 15	Officers arrested Mr. Tyler Lofall without probable cause on March 6th, 2022 (Page 15).
112	Duty to Investigate	Officer Catlin Blyth, under color of law, **wrongfully arrested Plaintiff without probable cause or investigation**.	Ex. 23, 28	3, 15	**Blyth arrested Plaintiff in an eight-minute arrest without probable cause** (Page 15).
113	Duty to Supervise	**City of West Linn is responsible for the unconstitutional actions of its officers**. Plaintiff was conscious of the confinement during his 129-day incarceration. Plaintiff did not consent to the arrest or confinement.	Ex. 12, 14	4, 8	**West Linn Police Department officers arrested Plaintiff without probable cause, favoring Macy** (Page 3); Plaintiff aware of 129-day detention (Page 4, 8).
120	Duty to Investigate	Gunnarson ignored photographic evidence of Macy Galla with a hammer and gloves, establishing Galla as the aggressor.	Ex. 19, 20, 21	6, 16	**Gunnarson withheld exculpatory photographic evidence of Macy with a hammer** (Page 6, 16).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
122	Duty to Investigate	Blyth ignored photographic evidence of Macy Galla with a hammer and gloves, establishing Galla as the aggressor.	Ex. 19, 20, 21	6, 16	**Blyth's eight-minute investigation overlooked Macy's aggression** (Page 16).
130	Duty to Report Accurately	Gunnarson, instructed by a supervisor, embellished her report and twisted Plaintiff's words to manufacture probable cause.	Ex. 26, 27	4, 18	**Gunnarson fabricated her official report, twisting Plaintiff's words** (Page 4, 18).
132	Duty to Report Accurately	Blyth, instructed by a supervisor, embellished her report and twisted Plaintiff's words to manufacture probable cause.	Ex. 26, 27	4, 18	**Blyth contributed to fabricated report** (Page 18).
141	Duty to Investigate	Gunnarson, instructed by a supervisor, embellished her report and twisted Plaintiff's words to manufacture probable cause.	Ex. 19, 20, 21	4, 18	**Gunnarson fabricated evidence, violating Fourth Amendment rights** (Page 18).
142	Duty to Investigate	Blyth, instructed by a supervisor, embellished her report and twisted Plaintiff's words to manufacture probable cause.	Ex. 19, 20, 21	4, 18	**Blyth fabricated evidence, violating rights** (Page 18).
143	Duty to Supervise	**City of West Linn violated its policies (e.g., 339.59) by failing to ensure an ethical and unbiased investigation**.	Ex. 26, 27	10	**Policies were ignored or altered to obstruct Plaintiff's defense** (Page 10).
144	Duty to Disclose Evidence	DDA Portlock failed to disclose exculpatory photos and reports provided by WLPD, enabling the continued detention.	Ex. 5	3, 15	**Portlock ignored exculpatory evidence that could have exonerated**

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
					Plaintiff (Page 3, 15).
211	Duty to Prosecute Fairly	Gunnarson initiated wrongful prosecution by providing false, incomplete, and biased reports.	Ex. 23	5, 18	**Gunnarson provided falsified records to support wrongful arrest** (Page 18).
212	Duty to Prosecute Fairly	Blyth initiated wrongful prosecution by co-signing and contributing to false, incomplete, and biased reports.	Ex. 23	5, 18	**Blyth contributed to false reports, violating rights** (Page 18).
213	Duty to Supervise	**City of West Linn's custom of inadequate supervision was a moving force behind the malicious prosecution**.	Ex. 26, 27	5, 10	**Flawed policies directly resulted in wrongful prosecution** (Page 10).
214	Duty to Prosecute Fairly	DDA Portlock initiated and continued prosecution despite knowing it lacked probable cause and was based on coerced/unreliable testimony.	Ex. 1A, 2, 5	3, 15	**Portlock ignored exculpatory evidence and pursued baseless charges** (Page 15).
220	Duty to Adjudicate Fairly	Criminal proceedings terminated in Plaintiff's favor on July 13, 2022, via dismissal. The prosecution lacked probable cause, as it was based on ignored evidence and the testimony of a non-credible, aggressive witness.	Ex. 14	5	Charges dismissed after prolonged detention (Page 5).
230	Duty to Investigate	Gunnarson acted with malice by fabricating a narrative and concealing evidence to ensure prosecution.	Ex. 4, 6, 19	5, 18	**Gunnarson fabricated a narrative and concealed evidence** (Page 18).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
232	Duty to Investigate	Blyth acted with malice by participating in the fabrication of a narrative and concealing evidence.	Ex. 23, 98	5, 18	**Blyth participated in fabricating evidence** (Page 18).
234	Duty to Prosecute Fairly	Portlock acted with malice by knowingly using coerced testimony, **fabricating a COVID-19 claim to delay trial**, and pursuing charges after Galla's exculpatory statements.	Ex. 23, 97	5, 19	**Portlock fabricated COVID-19 claims to delay trial** (Page 19).
244	Duty to Prosecute Fairly	(Anti-Immunity Fact) DDA Portlock acted with malice by **fabricating a claim that Plaintiff had COVID-19 to secure an unjust trial delay**. This is an administrative act, not advocacy.	Ex. 1A, 2	5, 19	**Portlock's false COVID-19 claim was an administrative act** (Page 19).
244	Duty to Investigate	(Anti-Immunity Fact) DDA Portlock acted with malice by attempting to leverage Macy Galla's child custody situation to coerce testimony, an investigative function outside the scope of advocacy.	Ex. 1A, G, M	5, 19	Portlock leveraged Macy's custody to coerce testimony (Page 19).
244	Duty to Prosecute Fairly	(Anti-Immunity Fact) DDA Portlock maliciously continued the prosecution after Macy Galla stated in court that Plaintiff "committed no crimes" and that she had been manipulated.	Ex. 2, 32	5, 19	Portlock continued prosecution despite exculpatory statements (Page 19).
250	Duty to Adjudicate Fairly	Plaintiff suffered a 129-day deprivation of liberty as a direct consequence of the	Ex. 12, 14	5, 8	129-day detention deprived Plaintiff of liberty (Page 8).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
		malicious legal proceedings.			
311	Duty to Collaborate Legally	Gunnarson agreed with other state actors to **deprive Plaintiff of his rights**. Gunnarson agreed with Blyth, WLPD supervisors, DDA Portlock, and potentially court-affiliated personnel to engage in a course of conduct to unlawfully arrest, maliciously prosecute, and obstruct Plaintiff's access to justice.	Ex. 1A, 2, 7	6	**Gunnarson conspired to delay trial and fabricate charges** (Page 6).
312	Duty to Collaborate Legally	Blyth agreed with other state actors to **deprive Plaintiff of his rights**. Blyth agreed with Gunnarson, WLPD supervisors, DDA Portlock, and potentially court-affiliated personnel to engage in a course of conduct to unlawfully arrest, maliciously prosecute, and obstruct Plaintiff's access to justice.	Ex. 1A, 2, 7, 23, 97, 98, 99	6	**Blyth conspired with others to violate rights** (Page 6).
314	Duty to Collaborate Legally	Portlock agreed with other state actors (including Plaintiff's counsel) to **deprive Plaintiff of his rights**.	Ex. 1A, 2	6, 19	**Portlock agreed with counsel to violate rights** (Page 19).
317	Duty to Provide Legal Access	Clackamas County Jail staff (Sgt. Wooster, Guard Baker) conspired to obstruct Plaintiff's access to courts and legal defense by **deleting files and denying law library access**, contributing to the loss of his	Ex. 12, 13, 32, 74, 76	7	**Jail staff deleted 62 legal files** (Page 7).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
		AOB claim.			
317	Duty to Supervise	Clackamas County, through its policies and customs at the jail and DA's office (and potentially improper influence over court administrative functions via Judge Wetzel/Dupree), facilitated and was deliberately indifferent to the **ongoing conspiracy against Plaintiff**.	Ex. J, K, 35-2, 35-4	7	County's policies facilitated conspiracy (Page 7).
320	Duty to Adjudicate Fairly	Overt Act: The entire sequence of events from the **initial false arrest, the fabrication of evidence, the suppression of body cameras**, the malicious prosecution, the lies to the court, the jail misconduct, to the FOIA obstruction.	All Exhibits	6	**Sequence included false arrest and evidence fabrication** (Page 6).
321	Duty to Report Accurately	Overt Act: Gunnarson fabricated her official report and **concealed photographic evidence**. Overt Act: DDA Portlock and Rubin Medina **lied to the court about Plaintiff's COVID status**.	Ex. 23, 98	6, 19	**Gunnarson concealed evidence; Portlock lied about COVID** (Page 19).
324	Duty to Prosecute Fairly	Overt Act: Portlock knowingly **presented false information to the court regarding Plaintiff's COVID-19 status**.	Ex. 1A	6, 19	**Portlock fabricated COVID-19 claims** (Page 19).
330	Duty to Adjudicate Fairly	Constitutional Injury: Plaintiff suffered wrongful detention and denial of a fair trial as a result of the	Ex. 4, 12	6	Wrongful detention resulted from conspiracy (Page 6).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
		conspiracy.			
411	Duty to Protect	Gunnarson was aware of the substantial risk of serious harm to Plaintiff from Macy Galla's threats and actions.	Ex. 4, 7, 19	6	Gunnarson knew of Macy's threats (Page 6).
412	Duty to Protect	Blyth was aware of the substantial risk of serious harm to Plaintiff from Macy Galla's threats and actions.	Ex. 4, 7, 19	6	Blyth knew of Macy's threats (Page 6).
421	Duty to Protect	Gunnarson disregarded the risk by failing to arrest Galla, secure the gasoline, or otherwise intervene.	Ex. 4, 19	6	Gunnarson failed to intervene despite Macy's actions (Page 6).
422	Duty to Protect	Blyth disregarded the risk by failing to arrest Galla, secure the gasoline, or otherwise intervene.	Ex. 4, 19	6	Blyth failed to intervene despite Macy's actions (Page 6).
423	Duty to Supervise	**City of West Linn's policy/custom of inaction created the danger that led to Plaintiff's harm**.	Ex. 26, 27	6, 10	**Policy inaction led to Plaintiff's harm** (Page 10).
430	Duty to Protect	Plaintiff suffered extensive property damage and emotional distress as a result of Defendants' inaction.	Ex. 21, 22	7	Macy caused property damage due to inaction (Page 7).
515	Duty to Provide Medical Care	Serious Medical Need (COVID-19): Plaintiff was subjected to the substantial risk of serious harm from **COVID-19 while in the custody of Clackamas County**. Serious Medical Need (Blindness): **Plaintiff's legal blindness** and need for corrective lenses constituted a serious medical need.	Ex. 12	7, 9	**Plaintiff's legal blindness was a serious need** (Page 9).
516	Duty to Provide	Knowledge of Risk (COVID-19): Jail staff knew	Ex. 12	7	**Jail staff knew of COVID-19 risk**

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
	Medical Care	of the risk of COVID-19 and **deliberately exposed Plaintiff by housing him with infected inmates**.			(Page 7).
525	Duty to Provide Medical Care	Knowledge of Risk (Blindness): Jail staff knew of **Plaintiff's legal blindness** and need for corrective lenses through his grievances and requests.	Grievance Forms	9	**Defendants aware of blindness via grievances** (Page 9).
526	Duty to Provide Medical Care	Deliberate Indifference (COVID-19): The jail's chaotic handling of testing and **subsequent failure to provide adequate care after Plaintiff contracted the virus demonstrates deliberate indifference**.	Ex. 12	7	**Jail's chaotic handling showed indifference** (Page 7).
535	Duty to Provide Medical Care	Deliberate Indifference (Blindness): The systematic **denial of Plaintiff's corrective lenses**, leaving him unable to read or prepare a defense, was an act of deliberate indifference.	Ex. 12	9	**Denial of lenses hindered defense** (Page 9).
536	Duty to Provide Medical Care	Deliberate Indifference (Retaliation): Jail staff acted with deliberate indifference and malice when they retaliated against Plaintiff for a doctor's intervention regarding his hypothermia by revoking his release.	Ex. 12, 13	7	Retaliation revoked release (Page 7).
616	Duty to Release	Clackamas County Jail intended to confine Plaintiff past his court-ordered release date of July 1, 2022.	Ex. 12	8	**Jail intended to hold past release date** (Page 8).
620	Duty to	Plaintiff was conscious of	Ex. 12	8	**Plaintiff conscious**

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
	Release	his **continued confinement from July 1 to July 8, 2022**. Plaintiff did not consent to the extended, unlawful confinement.			**of extended confinement** (Page 8).
630	Duty to Release	The confinement after July 1, 2022, was without legal justification, as the jail possessed the release order.	Ex. 12	8	Confinement lacked justification (Page 8).
646	Duty to Release	The **confinement from July 1-8, 2022**, was without legal justification as the jail possessed the release order.	Ex. 12	8	**Jail held despite release order** (Page 8).
710	Duty to Provide Medical Care	**Plaintiff's legal blindness (-11.00/-12.00) constitutes a serious medical need**. Plaintiff's legal blindness constitutes a serious medical need.	Medical Records Prescription Records.	9	**Legal blindness identified as medical need** (Page 9).
725	Duty to Provide Medical Care	Clackamas County Sheriff's Dept. officials knew of **Plaintiff's blindness through grievances and direct communication**.	Grievance Forms	9	**Sheriff's Dept. aware via grievances** (Page 9).
726	Duty to Provide Medical Care	Clackamas County Jail staff knew of **Plaintiff's blindness through grievances and direct communication**.	Grievance Forms	9	**Jail staff aware via grievances** (Page 9).
726	Duty to Provide Medical Care	Jail staff were aware of **Plaintiff's blindness and medical grievances**.	Grievance Forms	9	**Staff aware of blindness and grievances** (Page 9).
735	Duty to Provide Medical Care	The Sheriff's Dept's failure to ensure medical care was provided constitutes deliberate indifference.	Ex. 12	9	Failure to provide care shown (Page 9).
735	Duty to	The Sheriff's Dept's failure	Ex. 12	9	Repeated failure to

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
	Provide Medical Care	to ensure medical care was provided constitutes deliberate indifference.			provide care (Page 9).
736	Duty to Provide Medical Care	The Jail staff's **denial of corrective lenses**, knowing his condition, was an act of deliberate indifference.	Ex. 12	9	**Denial of lenses was deliberate** (Page 9).
736	Duty to Provide Medical Care	The Jail staff's **denial of corrective lenses**, knowing his condition, was an act of deliberate indifference.	Ex. 12	9	**Repeated denial of lenses** (Page 9).
736	Duty to Provide Medical Care	Jail staff's **denial of corrective lenses**, knowing his condition, was an act of deliberate indifference.	Ex. 12, 13	9	**Systematic denial hindered defense** (Page 9).
810	Duty to Respect Contracts	Plaintiff had a valid Assignment of Benefits (AOB) agreement valued at $111,943.56.	Ex. 9, Master Exhibit List	9	Valid AOB agreement existed (Page 9).
826	Duty to Provide Legal Access	Jail staff were aware of Plaintiff's need to access legal resources to protect his contractual rights.	Ex. 33	9	Staff aware of legal access need (Page 9).
835	Duty to Supervise	Clackamas County Sheriff's Dept. (as overseer of Jail) intentionally interfered with Plaintiff's AOB claim by allowing/ratifying jail staff's actions of **denying legal access and deleting files**.	Ex. 12, 13, 76	9	**Dept. ratified interference with AOB** (Page 9).
836	Duty to Provide Legal Access	Jail staff intentionally interfered with the AOB by **denying law library access and deleting legal files**.	Ex. 11, 13, 23	9	**Staff denied access and deleted files** (Page 9).
836	Duty to Provide Legal Access	Clackamas County Jail staff (Wooster, Baker) intentionally interfered with Plaintiff's AOB claim by	Ex. 12, 13, 76	9	**Specific staff interfered with AOB** (Page 9).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
		denying legal access and deleting files.			
837	Duty to Provide Legal Access	Clackamas County (as entity responsible for court administration/FOIA via Dupree/Wetzel) intentionally interfered with Plaintiff's AOB claim by obstructing access to court records necessary to pursue the claim.	Ex. K	9	County obstructed court records (Page 9).
840	Duty to Respect Contracts	Plaintiff suffered the forfeiture of the AOB valued at $111,943.56 as a direct result of the interference.	Ex. 9, 24	9	Forfeiture resulted from interference (Page 9).
913	Duty to Train	**The City of West Linn had a policy/custom of failing to train officers on probable cause, evidence handling, and identifying primary aggressors**.	Ex. 26, 27	10	**Failure to train led to violations** (Page 10).
917	Duty to Train	Clackamas County had a policy/custom of failing to train jail staff on providing medical care and ensuring access to courts.	Ex. 7, 26	10	County failed to train staff (Page 10).
923	Duty to Supervise	**The WLPD policy/custom amounted to deliberate indifference to constitutional rights**.	Ex. 26, 27	10	**Policies showed deliberate indifference** (Page 10).
927	Duty to Supervise	The County's policy/custom amounted to deliberate indifference to constitutional rights.	Ex. 7, 26	10	County policies showed indifference (Page 10).
933	Duty to Train	**The WLPD's failure to train was the moving force behind the Unlawful Arrest and Malicious**	Ex. 7, 26	10	**Training failure drove violations** (Page 10).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
		Prosecution.			
937	Duty to Train	The County's failure to train was the moving force behind the False Imprisonment and Denial of Medical Care.	Ex. 12, 13	10	Training failure caused violations (Page 10).
1027	Duty to Adjudicate Fairly	Clackamas County (through actions of its courts and DA) **denied Plaintiff a meaningful opportunity for a jury trial** on his AOB and other civil claims through premature dismissals based on Defendants' own non-appearance and obstruction.	Ex. 35-2, 35-4, F	11	**Court denied motions, impeding jury trial** (Page 11).
1137	Duty to Adjudicate Fairly	Clackamas County (through its DA, Jail, and Court system) **deprived Plaintiff of due process via a pattern of biased proceedings, suppression of evidence, and denial of access to legal resources**.	All relevant Exhibits	12	**Pattern of biased proceedings violated due process** (Page 12).
1214	Duty to Provide Legal Counsel	Defendants, led by DDA Portlock, interfered with Plaintiff's right to counsel by conspiring with his own court-appointed advisor.	Ex. 1A	13	Portlock conspired with counsel to obstruct (Page 13).
1224	Duty to Adjudicate Fairly	Defendants, led by DDA Portlock, interfered with Plaintiff's right to a fair and speedy trial by **fabricating evidence to secure delays**.	Ex. 1A	13	**Fabrication delayed trial** (Page 13).
1311	Duty to Investigate	Forfeiture by Withholding Evidence: Gunnarson intentionally **withheld exculpatory photographic evidence** of Macy Galla armed with a hammer, which	Ex. 19, 20, 21, 98	14, 17	**Gunnarson withheld evidence negating probable cause** (Page 17).

Entry Number	Party/Role	Description	Exhibit Reference	Page Reference	Additional Evidence from Document
		would have negated probable cause.			
1312	Duty to Report Accurately	Forfeiture by Fabrication: Gunnarson **fabricated her official report**, twisting Plaintiff's words to create a false narrative. An arrest based on fabricated evidence is void of probable cause.	Officer Reports, Ex. 95	14, 17	**Gunnarson fabricated report** (Page 17).
1314	Duty to Investigate	Forfeiture by Lack of Due Process: Blyth's participation in an **eight-minute "investigation"** and arrest demonstrates a complete lack of procedural due process, rendering the seizure unreasonable.	Ex. 28, 97	14, 16	**Blyth's eight-minute arrest lacked due process** (Page 16).
1317	Duty to Supervise	Forfeiture by Biased Discovery: **The City of West Linn, through its policy violations, allowed for the creation and submission of a biased and incomplete discovery file to the DA**, tainting the entire legal process from its inception.	Ex. 7, 26, 90	14, 10	**Policy violations tainted discovery** (Page 10).

Note: The case against County of Clackamas, Clackamas County Jail, and Rebecca Portlock was dismissed on APRIL 11, 2023, for want of prosecution due to the defendants not appearing, as per Uniform Trial Court Rules 7.020 (see Exhibit 35-2). A motion to compel filed on April 4, 2022, and dismissal on April 11, 2022, shows clear second mapping of judicial corruption.

THE HISTORICAL MOMENT & THE NEED FOR JUSTICE

This Court faces a choice: allow procedural technicalities to defeat substantive justice, or give meaning to the Ninth Amendment. The Defendants demolished Plaintiff's life to the point that drafting simple documents is an immense hardship. Justice requires this Court to look past minor pro se imperfections caused by Defendants' own actions and address the merits.

The facts are undeniable. The law is clear. The Ninth Amendment lives. This Court must now decide: Will it breathe life into dormant constitutional text, or will it endorse the disparagement that destroyed Tyler Allen Lofall?

Tyler Allen Lofall, Pro Se Plaintiff

Dated: June 17, 2025.

s /Tyler A. Lofall

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